

Ashwani v. Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 20 March 2024 · 2024:AHC:50979-DB · Writ-C No. 9298 of 2024 · **Bill dispute referred to Executive Engineer under clause 6.5**

HEADNOTE

On consent, a dispute over the correctness of an electricity bill was referred under clause 6.5 of the U.P. Electricity Supply Code, 2005 for decision by the concerned Executive Engineer. Respondent no. 2 was directed to decide it, in light of the objection dated 1 January 2024, within six weeks of communication of the order and a photocopy of the objection, and the writ was disposed of.

FACTUAL SUMMARY

Ashwani, a consumer, disputed the correctness of an electricity bill issued by Purvanchal Vidyut Vitran Nigam Ltd. and approached the Allahabad High Court in Writ-C No. 9298 of 2024. He had already lodged a written objection dated 1 January 2024. The Managing Director and two other officers of the licensee were arrayed as respondents. At the hearing both sides accepted that the bill-correctness dispute should be placed before the concerned Executive Engineer under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

referral of a bill-correctness dispute to the Executive Engineer

HOLDING

Where counsel agree that a dispute over the correctness of an electricity bill be referred under clause 6.5 of the U.P. Electricity Supply Code, 2005 for decision by the concerned Executive Engineer, the writ is disposed of by directing respondent no. 2 to decide that dispute, in light of the objection dated 1 January 2024, within six weeks of communication of the order together with a photocopy of the objection. ¶ 2-4

PRINCIPLE TAGS

clause-6.5-representation-executive-engineer Both sides agreed that the dispute over correctness of the electricity bill be referred under clause 6.5 for decision by the concerned Executive Engineer, and the Court directed respondent no. 2 to decide it. ¶ 2-3

clause-6.5-pending-representation-to-be-decided The objection dated 1 January 2024 was left to be decided within six weeks of communication of the order along with a photocopy of the objection. ¶ 3

clause-6.5-alternate-remedy-to-writ The writ was disposed of without adjudicating the bill, the parties having accepted clause 6.5 as the forum for the correctness dispute. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL WAS CORRECT

The Court did not examine the bill. Decision was left to respondent no. 2 under clause 6.5, in light of the objection dated 1 January 2024. ¶ 1-3

